

115 IN THE HIGH COURT OF PUNJAB AND HARYANA AT
 CHANDIGARH
 CRM-M-33151-2026 (O&M)
 DATE OF DECISION: 08.06.2026

ISLAM @ PAPPU

..PETITIONER

Versus

STATE OF HARYANA

... RESPONDENT

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Ms. Rosi, Advocate for the petitioner(s)
 Ms. Mayuri Lakhanpal Kalia, DAG Haryana

SANDEEP MOUDGIL, J (ORAL)

CRM-25116-2026

Application is allowed, as prayed for.

Exemption from filing the certified copies of Annexure P-1 &
P-2 is granted.

CRM-M-33151-2026

1. Prayer

The present petition has been filed under Section 482 BNSS seeking the concession of anticipatory bail in FIR No. 144 dated 06.05.2026 registered under Sections 13(1), 13(3), 3, 8 and 17 of the Haryana Gauvansh Sanrakshan and Gausamvardhan Act, 2015 at Police Station Sadar Nuh, District Nuh.

2. Brief facts of the case as narrated in the FIR reads as under:

12. First Information contents (First Information Facts): In the service of, Sir SHO Sahib Police Station Sadar Nuh Jai Hind. Today I, SI along with ESI Satbir Singh No. 603/Nuh, Constable Charan Singh 463/Nuh, Constable Rohit 275/Nuh,

HGH Arafat No. 692/Nuh and passenger vehicle Government Bolero No. HR-96 GV-9696 driver Vijender (Kaushal Rojgar) was present at Village Kontalaka for patrolling crime investigation when a special informer met them and informed that Mukeem alias Makee son of Sharif resident of Nausera, Police Station Sadar Nuh, District Nuh, Islam alias Pappu son of Babudin resident of Andhaka, Police Station Sadar Nuh, District Nuh who together doing the business of cow slaughter and sell cow meat after slaughtering cows, who are preparing to sell cow meat even today after slaughtering cows. If a raid is conducted by reaching there quickly, the accused can be caught red-handed. Believing the information to be true, the passer by people who are visiting Village Kontalaka were informed about the information and were asked to join the raiding party. Expressing their legitimate compulsions, all the people left without revealing their names and addresses. After informing the fellow employees about the information, reached the said place along with the spy then onseeing the police party two persons started running whom Si along with his fellow officers tried to catch but due to the distance being big both persons managed to escape by taking advantage of the Kabuli keekars. The special informer told the names of the fleeing persons as Mukeem allas Makee son of Sharif resident of Nausera, Police Station Sadar Nuh, District Nuh, Islam alias Pappu son of Babudin resident of Andhaka, Police Station Sadar Nuh, District Nuh. On reaching back to the spot and checking, 95 kg of beef, cow skin of black colour, mouth with horns, was recovered. Motorcycle no. HR-27 L-3055 was recovered which was 95 kg of beef, cow skin of black colour, mouth with horns. Motorcycle No. HR-27 L-3055 was taken into police custody through recovery memo. Signatures of witnesses were taken on the recovery memo and e-evidence was uploaded on the spot, Dr. Veterinary Doctor was informed

to come to the spot, the accused Mukeem alias Makee son of Sharif resident of Nausera, Police Station Sadar Nuh, District Nuh, Islam alias Pappu son of Babudin resident of Andhaka, Police Station Sadar Nuh, District Nuh has committed the crime of cow slaughter and selling the meat of the cow under sections 3/13 (1), 8/13 (3), 17 HGS GS Act, on which Constable Rohit No. 275/Nuh is being sent to Police Station Sadar Nuh to register the charge by writing an article. After registering the charge, inform by the charge number and send other investigating officers to the spot for further investigation of the case. I am present at the spot of the case along with my fellow employees along with the case property. Az-Bahad Rakba Village Kontalaka SD - SI RAJKUMAR CS STAFF NUH Date- 06.05.2026 Today Police Station- At this time a written complainthas been lodged against SI Rajkumar CS STAFF NUH Mukeem alias Makee. On receipt of the above mentioned complaint by Constable Rohit-275/Police Station, regarding Mukeem @ Makee son of Sharif resident of Nausera, Police Station Sadar Nuh, Islam alias Pappu son of Babudin resident of Andhaka, Police Station Sadar Nuh, Bahad Rakba Kotlaka, about cow slaughter and keeping beef for sale by the above mentioned accused, FIR No. 144 dated 06.05.2026 under sections 3/13(1), 8/13(3), 17 HGS GS Act was registered at Police Station Sadar Nuh, and the printed copies of the FIR will be prepared on CCTS through computer and sent to the service of Area Magistrate and higher officials through post. The copy of the complaint along with the original complaint is being sent through Constable and IO at the place of incident for further investigation, SI Vijay CS STAFF NUH has been informed through telephone.

3. Contentions

On behalf of the Petitioner

Learned counsel for the petitioner contends that the petitioner is innocent and has been falsely implicated in the present case. It is submitted that no role has been attributed to the petitioner and that the allegations levelled against him are false. Learned counsel further submits that the petitioner's earlier application for anticipatory bail was wrongly dismissed by the learned Additional Sessions Judge, Nuh without properly appreciating the fact that no specific role is attributed to him in the alleged occurrence.

It is further contended that custodial interrogation of the petitioner is not required and that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the Respondents

Learned State counsel opposes the prayer for anticipatory bail and submits that, as per the prosecution case, the petitioner was specifically named in the secret information received by the police. Acting upon the said information, the police party conducted a raid at the disclosed place where the accused persons allegedly fled upon noticing the police. During the raid, 95 kilograms of beef, one cow skin, one horn and a motorcycle bearing registration No. HR-27-L-3055 were recovered and taken into police possession. It is further submitted that the petitioner has been involved in eight other criminal cases, the details whereof are reflected in the petition itself. On the basis of the allegations contained in the FIR, the recovery

effected during investigation and the criminal antecedents of the petitioner, learned State counsel prays for dismissal of the present petition.

4. ANALYSIS

I have heard learned counsel for the parties and perused the record.

The allegations levelled against the petitioner are serious in nature. As per the prosecution case, the petitioner was specifically named in the secret information received by the police, pursuant to which a raid was conducted. During the raid, 95 kilograms of beef, one cow skin and one horn were allegedly recovered from the spot. At this stage, such recovery prima facie lends support to the prosecution version and cannot be brushed aside while considering a prayer for anticipatory bail.

Another significant circumstance is the criminal antecedents of the petitioner. The petition itself discloses that eight criminal cases have previously been registered against him, several of which pertain to offences under the Haryana Gauvansh Sanrakshan and Gausamvardhan Act, 2015.

It is also pertinent to note that the Apex Court in *Jai Prakash Singh v. State of Bihar*, (2012) 4 SCC 379, held that anticipatory bail is an extraordinary remedy and should not be granted as a matter of course, particularly where serious allegations are levelled against the accused. Similarly, in *State represented by the CBI v. Anil Sharma*, (1997) 7 SCC 187, it was observed that custodial interrogation is qualitatively more elicitation-oriented than questioning a suspect protected by a pre-arrest bail order and that grant of anticipatory bail may, in appropriate cases, adversely affect the investigation.

Considering the nature of allegations, the recovery effected during investigation and the criminal antecedents of the petitioner, this Court does not find it to be a fit case for grant of the extraordinary concession of anticipatory bail. Consequently, the present petition is dismissed.

Consequently, this Court is of the considered view that the petitioner has failed to make out a case for grant of anticipatory bail. The present petition is accordingly dismissed.

It is, however, clarified that any observation made herein is only for the purpose of deciding the present petition and shall not be construed as an expression on the merits of the case during trial.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026
nainarajput

<i>Whether speaking/reasoned</i>	:	<i>Yes/No</i>
<i>Whether reportable</i>	:	<i>Yes/No</i>